

FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
(DIVISION 2)

Dey v Minister for Immigration and Citizenship (No 2) [2026] FedCFamC2G 1799

File number(s): MLG 1637 of 2020

Judgment of: JUDGE BINGHAM

Date of judgment: 14 September 2026

Catchwords: **MIGRATION**— costs — whether costs should be awarded against Mr Gurdial Singh Ranjit Singh, sole practitioner of Quantum Consulting: Quantum Legal Advisory Migration Consultants Pty Ltd of Suite 1.06, Level 1/365 Little Collins St, Melbourne VIC 3000 — where the lawyer failed to disclose that he had drafted and settled an application on behalf of the applicant — where the lawyer acted ‘in the shadows’ — where his failure to disclose his involvement resulted in the adjournment of the matter — where he failed to attend court in relation to the question of costs resulting in a further adjournment — breach of the lawyer’s duty to the Court — costs ordered personally against practitioner

PRACTICE AND PROCEDURE — inappropriate use of generative artificial intelligence in the preparation of submissions by Mr Gurdial Singh Ranjit Singh where the Court was required to check the citations provided — where citations were either AI hallucinations or did not support the proposition for which they were cited — breach of duty to the Court — consideration of the appropriate sanction for a lawyer’s improper use of generative artificial intelligence

Legislation: *Federal Circuit and Family Court of Australia Act 2021* (Cth) ss 190; 191(1)
Migration Act 1958 (Cth) ss 486F; 486I
Legal Profession Uniform Application Act 2014 (Vic) s 174
Legal Profession Uniform Law Australian Solicitors’ Conduct Rules 2015
Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2021 (Cth) rr 1.06(2); 22.06
Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2025 (Cth) rr 2.10(b); 32.05
Federal Court Rules 2011 (Cth) r 2.16

Cases cited: *Dayal* [2024] FedCFamC2F 1166
IZT24 v Minister for Immigration and Citizenship [2026] FedCFamC2G 740
JNE24 v Minister for Immigration and Citizenship [2025] FedCFamC2G 1314
Mertz & Mertz (No 3) [2025] FedCFamC1A 222
Mitry Lawyers v Barden [2014] FCA 918
Murray on behalf the Wamba Wemba Native Title Claim Group v State of Victoria [2025] FCA 731
Myron & Milson [2020] FamCAFC 151
Pasuengos v Minister for Immigrations and Citizenship No2 [2026] FedCFamC2G 96
Sandison & Thornhill (No 3) [2023] FedCFamCF1 981
SZFDZ v Minister for Immigration and Multicultural Affairs [2006] FCA 1366
Tesar & Szep (No.3) [2026] FedCFamC1F 21
Valu v Minister for Immigration and Multicultural Affairs (No 2) [2025] FedCFamC2G 95

Division: Division 2 General Federal Law

Number of paragraphs: 84

Date of hearing: 5 May 2026

Place: Melbourne

Applicant: Appearing in person

Solicitor for the Respondents: HWLE Lawyers

Counsel for Mr Gurdial Singh Ranjit Singh: Mr White

AND:

MINISTER FOR IMMIGRATION AND CITIZENSHIP

First Respondent

ADMINISTRATIVE REVIEW TRIBUNAL

Second Respondent

ORDER MADE BY: JUDGE BINGHAM
DATE OF ORDER: 14 SEPTEMBER 2026

THE COURT ORDERS THAT:

- 1. Mr Dey pay the Minister’s costs fixed in the amount of \$6,700.00.
- 2. Mr Gurdial Singh Ranjit Singh pay the Minister’s costs fixed in the amount of \$9,600.00.
- 3. Order 5 of the Orders of Registrar Roberts dated 26 June 2026 be vacated.

Note: The form of the order is subject to the entry in the Court’s records.

Note: The Court may vary or set aside a judgment or order to remedy minor typographical or grammatical errors (r 24.04(g) *Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2025* (Cth)), or to record a variation to the order pursuant to r 24.04 *Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2025* (Cth).

REASONS FOR JUDGMENT

JUDGE BINGHAM:

- 1. This matter concerns an application by the First Respondent (**Minister**) for costs, including costs against a lawyer, Mr Gurdial Singh Ranjit Singh, following my decision in *Dey v Minister for Immigration and Citizenship* [2026] FedCFamC2G 373 (**Judicial Review Decision**) dismissing Mr Dey’s judicial review application.
- 2. In addition to the issue of costs, it involves the consideration of sanctions to be imposed on Mr Gurdial Singh Ranjit Singh for the inappropriate use of generative artificial intelligence (**generative AI**) in the preparation of documents filed in the judicial review proceedings and in the cost proceedings that followed.
- 3. The Minister seeks orders:
 - (a) vacating the cost order of Registrar Roberts made 26 June 2025;
 - (b) for costs thrown away by reason of the adjournment of the final hearing on 30 October 2025 fixed in the amount of \$3,500.00 to be paid by Mr Gurdial Singh Ranjit Singh;
 - (c) for costs in relation to the determination of the application for costs fixed in the amount of \$3,500.00 to be paid by Mr Gurdial Singh Ranjit Singh; and
 - (d) for costs otherwise incurred with respect to Mr Dey’s judicial review proceeding:
 - (i) fixed in the amount of \$6,700.00 to be paid by Mr Dey;
 - (ii) fixed in the amount of \$2,600.00 to be paid by Mr Gurdial Singh Ranjit Singh.

4. Mr Dey agrees with the Minister's proposed apportionment of costs between him and Mr Gurdial Singh Ranjit Singh.

5. Mr Gurdial Singh Ranjit Singh opposes the cost orders sought by the Minister against him personally. He concedes that the Minister incurred costs in relation to the determination of the application for costs because of his inappropriate use of generative AI in the preparation of submissions filed in this Court on 1 March 2026 and withdrawn on 5 May 2026, but any costs order made against him in this regard should be fixed in the amount of \$1,500.00.

HOW IS MR GURDIAL SINGH RANJIT SINGH INVOLVED IN THESE PROCEEDINGS?

6. Mr Gurdial Singh Ranjit Singh is the Principal Solicitor and Director of Quantum Legal Advisory & Migration Consultants Pty Ltd. He is a sole practitioner who practises primarily in migration law and attests to being a specialist in the area. He was admitted as a solicitor in 2003.

7. In or around June 2025, Mr Dey was referred to Mr Gurdial Singh Ranjit Singh by the director of Aussizz, a migration agency in which Mr Gurdial Singh Ranjit Singh had previously worked as an in-house solicitor. Mr Gurdial Singh Ranjit Singh claims that Mr Dey paid \$250.00 for the initial consultation.

8. Mr Gurdial Singh Ranjit Singh says that he met with Mr Dey on 26 June 2025 and that at that meeting he agreed to assist Mr Dey with his judicial review application by drafting an amended application for judicial review, drafting a written submission and settling an affidavit. Mr Gurdial Singh Ranjit Singh says he told Mr Dey that he would charge him \$3,500.00 inclusive of GST and met with Mr Dey in person on three occasions and otherwise spoke with him by telephone or communicated via WhatsApp. He also said that he told Mr Dey at their first meeting that he would not be acting as Mr Dey's solicitor on the record and that he would not be filing a notice of address for service in Mr Dey's judicial review proceeding and would not be appearing at the hearing unless a separate retainer was entered into and a hearing fee paid.

9. There was no retainer in writing. Mr Gurdial Singh Ranjit Singh did not make contemporaneous file notes of his discussions with Mr Dey, nor did he record the terms upon which Mr Dey retained him.

10. Mr Dey described the arrangement he had with Mr Gurdial Singh Ranjit Singh as "pay as you go". He agrees that he engaged Mr Gurdial Singh Ranjit Singh to prepare and settle documents for his judicial review application. Mr Dey said that he paid for his initial consultation with Mr Gurdial Singh Ranjit Singh when he met with him. Mr Dey received an invoice for the preparation and settling of documents from Mr Gurdial Singh Ranjit Singh for \$2,200.00 including GST, which he also paid. Mr Dey says that he paid Mr Gurdial Singh Ranjit Singh through PayID. Mr Dey denies that Mr Gurdial Singh Ranjit Singh told him that the estimate legal fees for the legal work to be performed on his behalf was \$3,500.00 including GST. He gave evidence that he did not know why Mr Gurdial Singh Ranjit Singh was seeking an additional \$1,300.00 from him as he had paid for the work that Mr Gurdial Singh Ranjit Singh had undertaken on his behalf. He also said that Mr Gurdial Singh Ranjit Singh "did not directly or indirectly say that he would not file a notice of address for service". Mr Dey denies that there were any discussions about a separate retainer for an appearance in Court.

11. The affidavit of Mr Dey and the amended thirteen ground application and submission prepared by Mr Gurdial Singh Ranjit Singh were provided to the Court on 24 July 2025. Each of those documents represented to the Court that they were prepared by Mr Dey. Another amended application setting out three grounds of review was provided to the Court on 26 July 2025. It also represented to the Court that Mr Dey had prepared it. Mr Dey relied upon the three ground amended application, the submissions and affidavit at the judicial review hearing. Each of these documents were accepted for filing on 2 March 2026. The submission relied upon by Mr Dey correspond with the grounds set out in three ground amended application. I am prepared to infer that Mr Gurdial Singh Ranjit Singh also prepared the three ground amended application as it corresponded to the written submissions authored by Mr Gurdial Singh Ranjit Singh.

12. On 24 September 2025, Mr Gurdial Singh Ranjit Singh and Mr Dey conversed via WhatsApp. Mr Gurdial Singh Ranjit Singh inquired of Mr Dey whether there was "any update from the fcofoa (sic)" and promising to "...call back after 530pm".

13. Mr Dey's judicial review application was listed for final hearing on 30 October 2025. From the Monday prior to the scheduled hearing Mr Dey was desperately trying to speak with Mr Gurdial Singh Ranjit Singh without success. On 29 October 2025 a nine minute telephone conversation between Mr Gurdial Singh Ranjit Singh and Mr Dey took place. During the course of that conversation Mr Gurdial Singh Ranjit Singh provided advice to Mr Dey regarding the content of an email to the Court requesting an adjournment. This email was subsequently settled by Mr Gurdial Singh Ranjit Singh. The Minister opposed the application for adjournment and consequently Mr Dey's judicial review application remained listed for final hearing on 30 October 2025. Mr Gurdial Singh Ranjit Singh then advised Mr Dey regarding the content of a second email requesting an adjournment. The application for adjournment was again opposed and refused.

14. From approximately 3.12pm on 29 October to the morning of 30 October 2025, Mr Dey attempted contact Mr Gurdial Singh Ranjit Singh on no less than 12 occasions without a response. Mr Dey gave evidence that he held the genuine belief that Mr

Gurdial Singh Ranjit Singh would either represent him at the final hearing or at the very least help him prepare so that he could appear himself.

15. Mr Gurdial Singh Ranjit Singh says that his retainer with Mr Dey ended upon him drawing and settling an amended application and submission and settling Mr Dey's affidavit. He describes his interactions with Mr Dey after this point as "voluntary assistance" where no legal advice was given, including, he says, in settling Mr Dey's correspondence to the Court requesting an adjournment.

16. On 30 October 2025 Mr Dey appeared before me and revived his application for an adjournment. The basis for the adjournment, Mr Dey submitted, was that Mr Gurdial Singh Ranjit Singh, being the lawyer that he had engaged, had not responded to his telephone calls and text messages and was not present to represent him. Mr Dey produced a number of documents which indicated that he had engaged and paid Mr Singh as his legal representative.

17. The documents relied upon by Mr Dey included:

(a) emails of 24 July 2025 from Mr Gurdial Singh Ranjit Singh to Mr Dey:

- (i) seeking payment of legal fees in the amount of \$2,000.00 associated with the preparation of an "Amended Application, research and redrafting" and "Amending and additional review of supporting affidavit";
- (ii) providing a Word version of an affidavit of Mr Dey directing him to sign "at the bottom of each page of the affidavit, where provided, and the last page and email it back to me clearly scanned. No phone scan please."; and
- (iii) providing the text for an email to the Court attaching the Amended Application and supporting affidavit.

(b) copies of text messages from a person described as "Gurdial Singh Ranjit Lawyer" between 24 September 2025 and 30 October 2025 requesting an update from the FCFCOA.

(c) WhatsApp messages in which Mr Dey sought advice regarding what should be written in emails to the court for seeking the adjournment of the 30 October hearing.

18. I adjourned the judicial review hearing to 20 January 2026 and made orders including requiring Mr Gurdial Singh Ranjit Singh to file a notice of address for service in the matter and for the Minister to serve any submissions on costs against the lawyer occasioned by the adjournment on Mr Gurdial Singh Ranjit Singh. The issue of the costs of the adjournment of the 30 October 2025 hearing was reserved until final hearing.

19. Mr Gurdial Singh Ranjit Singh did not file a notice of address for service. He said he did not do so on advice from an ethics advisor from the Law Institute of Victoria. Mr Gurdial Singh Ranjit Singh has never appeared on the record as the lawyer for Mr Dey.

20. From 4 November 2025 the filing of a notice of address for service became a moot point as Mr Dey informed the Court that he did not wish to be represented or take "any legal services and advice" from Mr Gurdial Singh Ranjit Singh.

21. Mr Gurdial Singh Ranjit Singh's involvement in these proceedings did not end with Mr Dey severing the solicitor-client relationship.

22. The final hearing listed on 20 January 2026 of Mr Dey's judicial review application was again adjourned on Mr Dey's application, on this occasion on medical grounds. Mr Dey was ordered to pay the Minister's cost thrown away on this occasion in the amount of \$1,000.00. Mr Gurdial Singh Ranjit Singh did not appear on 20 January 2026 despite the issue of costs against him personally. The final judicial review hearing together with the Minister's application for costs against Mr Gurdial Singh Ranjit Singh was relisted before the Court on 2 March 2026.

23. On 1 March 2026, Mr Gurdial Singh Ranjit Singh filed with this Court a submission and affidavit directed to the issue of making a costs order against him personally. These documents purported to answer the affidavit and submission filed by the Minister on 19 November 2025. The Court identified that generative AI had been used in the preparation of these submissions (**First Costs Submission**). The First Cost Submission contained authorities that were hallucinations or were not an authority for the proposition asserted. Upon fact checking the submissions filed in Mr Dey's judicial review proceedings it also became apparent that generative AI was also used in the preparation of the judicial review submission. This submission also contained many authorities that were hallucinations or were not an authority for the proposition asserted. It was not until the commencement of the hearing on costs on 5 May 2026 did Mr Gurdial Singh Ranjit Singh inform the Court through his Counsel that he no longer relied on the First Cost Submissions.

24. At 1.46pm on 2 March 2026 less than a half hour prior to the commencement of the judicial review and cost hearing, the Court received an email from Mr Gurdial Singh Ranjit Singh attaching a medical certificate in the following terms:

Mr Gurdial Singh Ranjit Singh has a medical condition and will be unfit for work from 02/03/2026 to 03/03 2026 inclusive.

25. The certificate does not disclose the nature of the medical condition or that Mr Gurdial Singh Ranjit Singh was unable to appear in court. No application was made to attend remotely. It appears that no attempt was made to engage Counsel to appear on Mr Gurdial Singh Ranjit Singh's behalf on that occasion.

26. The final judicial review hearing proceeded in Mr Gurdial Singh Ranjit Singh's absence on 2 March 2026. I reserved my judgment at the conclusion of the hearing.

27. I pronounced my judgment on Mr Dey's judicial review application on 16 March 2026 dismissing the judicial review application. Mr Gurdial Singh Ranjit Singh was notified of the listing for the delivery of judgment and did not attend Court that day. It is his evidence he notified the Minister that he did not intend to appear on the morning of 16 March 2026. Mr Gurdial Singh Ranjit Singh reason for not attending Court that day was that he was getting ready to depart for Malaysia to visit his mother-in-law and attend Eid. In light of the identification of the inappropriate use of generative AI, the issue of costs in the judicial review proceedings was deferred until 5 May 2026.

28. On 16 March 2026 orders were made requiring Mr Gurdial Singh Ranjit Singh to file any affidavit material and submissions upon which he sought to rely with respect to the use of generative AI by 4.00pm on 30 March 2026, and with respect to costs by 4.00pm on 3 April 2026. Mr Gurdial Singh Ranjit Singh filed affidavits and submissions in purported compliance with these orders. At the hearing two further written submissions were filed, one on costs and one on the use of generative AI. An additional affidavit of Mr Gurdial Singh Ranjit Singh was also filed. It was not until the hearing commenced that the Minister, Mr Dey, and the Court were apprised of the material upon which Mr Gurdial Singh Ranjit Singh would rely, namely:

- (a) Outline of submissions dealing with the use of artificial intelligence accepted for filing on 30 April 2026;
- (b) 'Supplementary Written Submissions of Mr Singh on Regulatory Consequences' filed 4 May 2026;
- (c) 'Outline of Submissions of Mr Singh on Costs' filed 4 May 2026;
- (d) an affidavit of Mr Gurdial Singh Ranjit Singh emailed to Chambers but not filed on 1 March 2026;
- (e) an affidavit of Mr Gurdial Singh Ranjit Singh filed 21 April 2026; and
- (f) an affidavit of Mr Gurdial Singh Ranjit Singh filed 4 May 2026.

29. Counsel appeared instructed by Mr Gurdial Singh Ranjit Singh at the hearing on 5 May 2026. Mr Dey appeared as a litigant in person. The Minister appeared by a solicitor advocate. Both Mr Gurdial Singh Ranjit Singh and Mr Dey gave oral evidence at the hearing and were cross examined.

30. Neither Mr Dey, nor the solicitor representing the Minister objected to the material filed on 4 May 2026, despite being filed only late afternoon the day prior to the hearing on costs.

31. The Minister relied upon the following documents:

- (a) Outline of submissions on costs filed 19 November 2025 (**The Minister's 2025 Submissions**);
- (b) Outline of further submissions on costs filed on 17 April 2026 (**The Minister's 2026 Submissions**); and
- (c) An affidavit of Emma Rogerson filed on 17 April 2026.

Duties of a legal practitioner

32. The fundamental duties of a solicitor in Victoria between 1 July 2015 and 30 June 2026 were governed by the [Legal Profession Uniform Law Australian Solicitors' Conduct Rules 2015](#) (**Uniform Legal Professional Rules**). Rule 3.1 provides:

A solicitors' duty to the court and the administration of justice is paramount and prevails to the extent of inconsistency with any other duty

33. In addition to the paramount duty the following duties apply among others:

- (a) A solicitor must not deceive or knowingly or recklessly mislead the court (Rule 19.1);

(b) A solicitor must take all necessary steps to correct any misleading statement made by the solicitor to a court as soon as possible after the solicitor becomes aware that the statement is misleading (Rule 19.2);

(c) A solicitor must take care to ensure solicitor's advice to invoke the coercive powers of a court is reasonably justified by the material available (Rule 21.1.1); and

(d) A solicitor must not allege any matter of fact in any court document settled by the solicitor unless the solicitor believes on reasonable grounds that the factual material already available provides a proper basis to do so (Rule 21.3.1).

34. The Court also imposes duties upon legal practitioners by operation of the rules that are in place at any one time. These proceedings traverse two iterations of the applicable Court's rules, being both the *Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2021* (Cth) (**GFL Rules 2021**) and the *Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2025* (Cth) (**GFL Rules 2025**) which came into effect on 1 September 2025.

35. The combined effect of r 1.06(2) of the GFL Rules 2021 and r 2.16 of the *Federal Court Rules 2011* (Cth) (**Federal Court Rules**) require the disclosure of the name of the person or lawyer responsible for the preparation of the document: *IZT24 v Minister for Immigration and Citizenship* [2026] FedCFamC2G 740 at [26] – [28] (**IZT24**). Rule 2.10(b) of the GFL Rules 2025 impose the same obligation that a document filed in a proceeding must contain the name of the person or lawyer responsible for preparing the document.

36. The Minister's 2025 Submissions also identifies relevant duties namely:

(a) a proceeding in this Court must be conducted in a manner consistent with the Court's overarching purpose: ss 190 and 191(1) of the *Federal Circuit and Family Court of Australia Act 2021* (Cth) (**FCFCOA Act**). A lawyer must, in their conduct, assist a party to comply with the Court's overarching purpose; and

(b) the *Migration Act 1958* (Cth) (**Migration Act**) imposes a requirement that a lawyer who has prepared a document that initiates migration proceedings certify that the matter has reasonable prospects of success: s 486I.

37. In IZT24 Judge Gerrard observed:

[29] As noted in *AYF15 v Minister for Immigration, Citizenship, Migrant Services and Multicultural Affairs* [2022] FedCFamC2G 10 (*AYF15*), it is appropriate to complement the 2021 FCFCOA Rules with r 2.16 of the *Federal Court Rules*. Importantly, Judge Given found in *AYF15* at [44] (emphasis added):

While it is true that r 2.04(2) of the Rules makes provision for substantial, and not strict, compliance with forms, in my view **one area where strict compliance with forms is required is the “prepared by” component prescribed by r 2.16(1)(b) of the FCA Rules, a fortiori when the author is a lawyer.**

[30] In *ARN17 v Minister for Immigration and Border Protection* [2018] FCA 974, Charlesworth J had cause to consider documents which were purported to have been prepared by a self-represented applicant but were clearly prepared by a lawyer. Her Honour observed at [43] as follows (emphasis added):

In a similar vein, I am not prepared to accept at face value the representations made on the face of the originating documents to the effect that the applicant was self-represented at the commencement of the proceedings and that he had personally prepared and filed the papers. As I have said, the applications before the Court are not accompanied by evidence disclosing the terms on which the first barrister was retained. The documents contain assertions on their face that they were prepared by the applicant personally and yet clearly they were not. **The assertions are apt to mislead the Court as to the identity of the person who has drawn the documents and thus as to the status of the applicant as a truly self-represented litigant.**

[31] Similarly, in *CPJ17 v Minister for Immigration and Border Protection* [2018] FCA 1242; (2018) 258 FCR 495, Charlesworth J found at [97] that the obligation in r 2.16 to identify the person who prepared a legal document is “*expressed in absolute terms*”. Her Honour further observed at [100] (emphasis added):

To be clear, where a document is prepared by a lawyer (including by the formulation of the grounds of appeal), the lawyer’s name must be identified in the footer of the document, irrespective of the capacity in which the lawyer is engaged. **This Court has previously expressed the view that to represent such a document as having been prepared by a self-represented litigant would be apt to mislead the Court:** *ARN17 v Minister for Immigration and Border Protection* [2018] FCA 974 at [43].

38. Judge Gerrard concluded:

[36] There can be no doubt that there is an obligation on lawyers to identify that they have prepared any document which is filed in this Court. Furthermore, lawyers in migration proceedings must also certify that they have considered whether an application has reasonable prospects. These obligations require strict compliance. Any breach of these obligations is likely to mislead the Court. Such breaches should be considered to be very serious.

39. I agree with these observations and findings.

Principles to be applied when considering costs orders against lawyers personally

40. Rule 22.06 of GFL Rules 2021 provided:

22.06 Order for costs against lawyer

(1) The Court or a Registrar may make an order for costs against a lawyer if the lawyer, or an employee or agent of the lawyer, has caused costs:

(a) to be incurred by a party or another person; or

(b) to be thrown away;

because of undue delay, negligence, improper conduct or other misconduct or default.

(2) A lawyer may be in default if a hearing may not proceed conveniently because the lawyer has unreasonably failed:

(a) to attend, or send another person to attend, the hearing; or

(b) to file, lodge or deliver a document as required; or

(c) to prepare any proper evidence or information; or

(d) to do any other act necessary for the hearing to proceed.

(3) An order for costs against a lawyer may be made:

(a) on the initiative of the Court or Registrar; or

(b) on application by a party to the proceeding; or

(c) by another person who has incurred the costs or costs thrown away.

(4) The order may provide:

- (a) that the costs, or part of the costs, as between the lawyer and party be disallowed; or
- (b) that the lawyer pay the costs, or part of the costs, incurred by the other person; or
- (c) that the lawyer pay to the party or other person the costs, or part of the costs, that the party has been ordered to pay to the other person.

(5) Before making an order for costs, the Court or Registrar:

- (a) must give the lawyer, and any other person who may be affected by the decision, a reasonable opportunity to be heard; and
- (b) may order that notice of the order, or of any proceeding against the lawyer, be given to a party for whom the lawyer may be acting or any other person.

41. Rule 32.05 of the GFL Rules 2025 is in similar terms to Rule 22.06 of the GFL Rules 2021.

42. [Section 486F](#) of the [Migration Act](#) also provides for costs orders to be made against a person who encourages another to commence or continue migration litigation. [Section 486F](#) is in the following form:

(1) If a person acts in contravention of [section 486E](#), the court in which the migration litigation is commenced or continued may make one or more of the following orders:

- (a) an order that the person pay a party to the migration litigation (other than the litigant), the costs incurred by that party because of the commencement or continuation of the migration litigation;
- (b) an order that the person repay to the litigant any costs already paid by the litigant to another party to the migration litigation, because of the commencement or continuation of the migration litigation;
- (c) where the person is a lawyer who has acted for the litigant in the migration litigation:
 - (i) an order that costs incurred by the litigant in the commencement or continuation of the migration litigation, are not payable to the lawyer;
 - (ii) an order that the lawyer repay the litigant costs already paid by the litigant to the lawyer in relation to the commencement or continuation of the migration litigation.

(2) If the court, at the time of giving judgment on the substantive issues in the migration litigation, finds that the migration litigation had no reasonable prospect of success, the court must consider whether an order under this section should be made.

(3) An order under this section may be made:

- (a) on the motion of the court; or
- (b) on the application of a party to the migration litigation.

(4) The motion or application must be considered at the time the question of costs in the migration litigation is decided.

(5) A person is not entitled to demand or recover from the litigant any part of an amount which the person is directed to pay under an order made under this section.

43. Justice Wigney in *Mitry Lawyers v Barden* [2014] FCA 918 at [42] conveniently summarised the principles to be applied when considering whether cost should be awarded against a lawyer personally:

The relevant principles emerge from three decisions of this Court: the judgment of Goldberg J in *White Industries (Qld) Pty Ltd v Flower & Hart* [1998] FCA 806; (1998) 156 ALR 169; and two Full Court decisions; *Levick*; and *Macteldir v Roskov* [2007] FCAFC 49. The principles may be summarised as follows:

1. Instituting or maintaining a proceeding on behalf of a client which has no, or substantially no, prospect of success will not, without more, invoke the jurisdiction to make a costs order against a lawyer.

2. Something which involves “unreasonable conduct” is required.

3. What constitutes unreasonable conduct will depend on the circumstances of the particular case.

4. The element of acting unreasonably involves some deliberate or conscious decision taken by reference to circumstances unrelated to the prospects of success, with either a recognition that there is no chance of success, or an intention to use the proceeding for an ulterior purpose, or to abuse the processes of the court, or with a disregard of any proper consideration of the prospects of success.

5. The circumstances must involve or result in a serious dereliction of duty owed to the court, or serious misconduct in promoting the course of, and the proper administration of, justice.

6. An ulterior purpose or an abuse of process cannot be assumed simply because the case is hopeless.

7. The reason that the mere pursuit of an unmeritorious case is not so sufficient to invoke the jurisdiction to make a costs order against a lawyer is that a party is entitled to have a practitioner act for him or her in an unmeritorious case. The court is concerned to avoid the risks of a practice developing whereby lawyers endeavour to browbeat their opponents into abandoning clients, or particular issues or arguments, for fear of personal costs orders being made against them.

44. His Honour also observed at [39] that the power to order costs against a lawyer personally is a power that must be “exercised with care and discretion and only in clear cases” and at [43] that procedurally “a lawyer against whom a costs order is made must have full and sufficient notice of the complaint and sufficient opportunity to answer it”.

Should I make personal costs orders against Mr Gurdial Singh Rangit Singh?

45. In my view this is one of those clear cases in which a cost order must be made against the lawyer personally. Mr Gurdial Singh Rangit Singh does not contend that he has not been given full and sufficient notice of the complaints made against him. The issue of a personal cost order was first raised on 30 October 2025, submissions and affidavit material were filed by the Minister on 19 November 2025 and 17 April 2026. My concerns regarding Mr Gurdial Singh Rangit Singh’s inappropriate use of generative AI was raised in the judicial review decision of 16 March 2026 and the orders I subsequently made with respect to this proceeding. The issue of costs and Mr Gurdial Singh Rangit Singh’s use of generative AI was not heard until 5 May 2026.

46. Contrary to rule 1.06(2) GFL Rules 2021 and rule 2.16 [Federal Court Rules](#), Mr Gurdial Singh Rangit Singh failed to identify that he:

(a) prepared and settled the amended application for judicial review filed 25 July 2025;

(b) prepared and settled the submission relied upon by Mr Dey in or around 25 July 2025 but filed 6 October 2025; and

(c) settle the affidavit of Mr Dey filed 25 July 2025.

47. Mr Singh did not, as required by s 486I of the [Migration Act](#), certify that as a lawyer the amended application for judicial review had reasonable prospects of success.

48. There is no retainer in writing. There are no file notes of the conversations that took place between Mr Gurdial Singh Ranjit Singh and Mr Dey regarding the terms of the retainer. Nor has Mr Gurdial Singh Ranjit Singh complied with his disclosure obligations under s 174 of the *Legal Profession Uniform Application Act 2014* (Vic).

49. I prefer Mr Dey's account of the terms on which he secured legal representation to those of Mr Gurdial Singh Ranjit Singh. I find that there was no substantive discussion regarding the terms and the extent of the work which Mr Gurdial Singh Ranjit Singh would perform for Mr Dey with respect to the judicial review proceedings. I do not accept that there was a discussion where Mr Gurdial Singh Ranjit Singh said to Mr Dey he would not be filing a notice of address for service in the Court. I find that a discussion took place where Mr Gurdial Singh Ranjit Singh said that he would go on the record closer to the hearing.

50. I accept that Mr Gurdial Singh Ranjit Singh sought the advice from the Law Institute of Victoria regarding my order and, as a consequence, did not file a notice of address for service. This advice does not excuse Mr Singh's failure to identify himself as the person who prepared the amended applications, affidavit and submission.

51. I do not accept that after Mr Gurdial Singh Ranjit Singh had drawn and settled the amended applications for judicial review, submissions and Mr Dey's affidavit that the engagement ended and that any additional work performed was on a 'voluntary' basis. This includes advising Mr Dey on applying for an adjournment of the final hearing and the settling of emails to the Court seeking that adjournment.

52. I find that Mr Dey genuinely expected Mr Gurdial Singh Ranjit Singh to appear at the final hearing, or if Mr Gurdial Singh Ranjit Singh was unavailable to appear, that he would provide assistance to Mr Dey to prepare for the final hearing as a litigant in person. This is evidenced by the desperate attempts of Mr Dey to contact Mr Gurdial Singh Ranjit Singh on the afternoon and evening of 29 October and on the morning of 30 October 2025 when an adjournment had not been granted on the papers. I also find that by 4 November 2025, Mr Dey no longer wanted Mr Gurdial Singh Ranjit Singh to represent him as indicated by his email to the court stating that he was still looking for an alternative lawyer.

53. Mr Gurdial Singh Ranjit Singh attests to being a migration law specialist and a solicitor of 20 years standing. I consider that he would have more than a passing familiarity with the rules of this court and the duty imposed on lawyers under the [Migration Act](#).

54. It is clear on the evidence before me that it was Mr Gurdial Singh Ranjit Singh's intention to deliberately mislead the Court by representing that Mr Dey had prepared the amended applications for judicial review, the submission and Mr Dey's affidavit. Further, his failure to attend on 30 October 2025, even out of simple courtesy to the Court, and because of the material relied upon by Mr Dey to support his application for an adjournment, undue delay was subsequently caused. Mr Gurdial Singh Ranjit Singh breached his duty to the Court.

55. At paragraph [40] of the Judicial Review Decision, I found that the evidence did not discharge the onus that the migration agent engaged in fraud but rather established that Mr Dey was recklessly indifferent to the actions of the migration agent. The evidence relied upon being contained in the affidavit settled by Mr Gurdial Singh Ranjit Singh, which I might also add was littered with errors, was incomplete and was at times repetitive.

56. At paragraphs [43] and [55] of the Judicial Review Decision, I found that the submissions failed to engage with the dispositive issue. The submissions referred to irrelevant parts of the [Migration Regulations 1994](#) (Cth) and referred to genuine temporary entrant criteria, all of which had nothing to do with Mr Dey's judicial review application. The submissions were drawn and settled by Mr Gurdial Singh Ranjit Singh.

57. In my view, a lawyer exercising due diligence in assessing whether there were reasonable grounds for believing that the amended application had reasonable prospects of success would not have been able to provide the certificate required by s 486I of the [Migration Act](#). Mr Gurdial Singh Ranjit Singh did not properly consider the prospects of Mr Dey's judicial review application. He encouraged Mr Dey to continue the judicial review proceeding by preparing and settling documents which were filed in the Court and were later relied upon by Mr Dey at the final hearing: *SZFDZ v Minister for Immigration and Multicultural Affairs* [2006] FCA 1366 at [21]. In addition to this, Mr Gurdial Singh Ranjit Singh also settled the emails Mr Dey sent to the Court requesting an adjournment of proceedings. I consider this conduct of Mr Gurdial Singh Ranjit Singh to constitute a breach of his duty to the Court.

58. In IZT24 at [46] Judge Gerrard aptly described the conduct of lawyers who mislead the Court by failing to comply with their duty under the combined operations of rules 1.06(1) and (2) of the GFL Rules 2021 and [rule 2.16](#) of the [Federal Court Rules](#)

and [section 486I](#) of the [Migration Act](#) as “effectively act[ing] for an applicant in the shadows”. I consider Mr Gurdial Singh Ranjit Singh’s conduct unacceptable. I am also gravely concerned that the practice of lawyers acting in the shadows in migration proceedings is rife. Not only does such a practice take unfair advantage of a vulnerable cohort of litigants who pay legal fees but also encourages the maintenance of unmeritorious cases that lawyers are unwilling to argue placing further strain on Court resources.

59. The Minister does not seek indemnity costs but rather seeks costs calculated on a party/party basis being 75% of the costs actually incurred. I consider the calculation of costs on this basis to be fair and reasonable.
60. I will order that Mr Gurdial Singh Ranjit Singh pay the Minister’s costs thrown away on 30 October 2025 by reason of the adjournment of the final hearing in the amount of \$3,500.00.
61. Mr Dey continued to rely on the material prepared by Mr Gurdial Singh Ranjit Singh in circumstances where no [s 486I](#) certificate was provided after the solicitor client relationship ended. It is that material that the Court considered in the judicial review decision.
62. I consider that it is appropriate that:

- (a) Mr Dey pay the Minister’s reasonable costs incurred with respect to the application for judicial review fixed in the amount of \$6,700.00 being the costs up to 25 July 2025 (being the date that the amended application prepared by Mr Singh was filed) and 50% of the costs reasonably incurred thereafter; and
- (b) Mr Gurdial Singh Ranjit Singh pay the Minister’s reasonable costs incurred with respect to the application for judicial review fixed in the amount of \$2,600.00 being 50% of the costs reasonably incurred from 25 July 2025.

MR GURDIAL SINGH RANJIT SINGH’S USE OF GENERATIVE AI

63. I now turn Mr Gurdial Singh Ranjit Singh’s improper use of generative AI and the Minister’s application for costs against Mr Gurdial Singh Ranjit Singh associated with the cost proceedings.
64. Mr Gurdial Singh Ranjit Singh admits to the inappropriate use of generative AI, not only in the preparation of the judicial review submissions, but also in the preparation of the First Costs Submission.
65. There is no blanket prohibition upon the use of generative AI. This Court now has in place a practice direction regarding the use of AI which applies to all proceedings in the Court. This Practice Direction came into effect on 29 May 2026 and does not apply to the judicial review proceedings or these cost proceedings. In any event generative AI can be a useful research tool but “it is not a proper substitute for legal research and it must be used having a legal practitioner’s duty to the Court firmly in mind”: *Pasuengos v Minister for Immigrations and Citizenship No2* [\[2026\] FedCFamC2G 96](#) (**Pasuengos (No 2.)**).
66. It is the Court that identified that Mr Gurdial Singh Ranjit Singh had included in the judicial review submissions relied upon by Mr Dey and in the First Cost Submission. Court resources were utilised to fact check submissions prepared by a legal practitioner. It is unacceptable that this occurred. The Court expects that a lawyer will use their expertise and ensure that the authorities relied upon in submissions do in fact exist and are not a mere hallucination of a generative AI program. The Court expects that a lawyer will maintain their professional duties and obligations when utilising generative AI. Mr Gurdial Singh Ranjit Singh admits that six authorities referred to in the judicial review submissions were hallucinations and five of the authorities in the First Costs Submissions were also hallucinations. He only did so after the Court sought clarification as to the existence of the authorities from him.
67. In *JNE24 v Minister for Immigration and Citizenship* [\[2025\] FedCFamC2G 1314](#) (**JNE24**) at [24] Judge Gerrard described the inherent dangers associated with hallucinated authorities in the following manner:

First, if discovered, there is the potential for a good case to be undermined by rank incompetence. Second, if undiscovered, there is the potential that the Court may be embarrassed and the administration of justice risks being compromised. Relatedly, the repetition of such cases in reported cases in turn feeds the cycle, and the possibility of a tranche of cases relying upon a falsehood ensues. Further, the prevalence of this practice significantly wastes the time and resources of opposing parties and the Court. Finally, there is damage to the reputation of the profession when the clients of practitioners can genuinely feel aggrieved that they have paid for professional legal representation but received only the benefit of an amateurish and perfunctory online search.

68. I consider Mr Gurdial Singh Ranjit Singh placing before the Court hallucinated authorities in his submissions improper conduct and a breach of his duties to the Court. He did this not once but in two separate submissions filed in these

proceedings. The First Costs Submission was prepared and filed after Judge Gerrard's decision in JNE24 a decision in a jurisdiction which Mr Gurdial Singh Ranjit Singh professes to specialise in. The improper use of generative AI caused inconvenience to the Court, has delayed the determination of the issue of costs and resulted in additional costs to the Minister in preparing to address submissions which were not ultimately relied upon and to address the Court on the matter of improper use of generative AI. I consider that Mr Gurdial Singh Ranjit Singh's improper use of generative AI compromised the effective administration of justice: *Murray on behalf the Wamba Wemba Native Title Claim Group v State of Victoria* [2025] FCA 731 (**Murray**) at [14].

69. Mr Gurdial Singh Ranjit Singh failed to attend court on 2 March 2026 and on 16 March 2026 being the occasions when the issue of costs were scheduled to be heard and potentially determined. With respect to his failure to appear on 2 March 2026, notice that he did not intend to appear was given a half hour before the hearing. I do not accept that the medical certificate provided to the Court gave rise to a reasonable excuse for Mr Gurdial Singh Ranjit Singh's failure to appear. The certificate did not describe his medical condition, nor did it state that Mr Gurdial Singh Ranjit Singh was unfit to attend court to make submissions or describe any accommodations that could be implemented by the Court to allow him to appear.

70. The fact that Mr Gurdial Singh Ranjit Singh did not intend to appear on 16 March 2026 was made on short notice to the Minister's representative and without notice to the Court. The reason proffered for the failure to appear was that he was distracted by his impending trip to Malaysia. This is likewise unacceptable.

71. There was no request on either 2 March 2026 or 16 March 2026 for Mr Gurdial Singh Ranjit Singh to appear remotely, nor did Mr Singh retain counsel to appear on his behalf. Mr Gurdial Singh Ranjit Singh simply did not show up. This conduct was disrespectful and was tantamount to treating the Court, Mr Dey, and the Minister's lawyers with contempt.

72. Mr Gurdial Singh Ranjit Singh also failed to comply with my orders for the filing of material by providing to the Court and the Minister's lawyer two additional submissions and an additional affidavit after 4.00pm on 4 May 2026, the evening before the costs hearing.

73. I consider the conduct of Mr Gurdial Singh Ranjit Singh with respect to the Cost Proceeding and the improper use of generative AI, including failing to verify authorities contained in the First Costs Submission, is an appropriate basis upon which a personal cost order should be made against him with respect to the cost proceeding: *Murray* at [16] and *Pasuengos No.2* at [44].

74. The Minister seeks costs against Mr Gurdial Singh Ranjit Singh in the fixed sum of \$3,500.00 I consider this reasonable as it is 75% on the costs incurred by the Minister and represents a reasonable estimate of party/party cost of the costs proceeding.

What sanctions should be imposed on Mr Gurdial Singh Ranjit Singh because of his conduct?

75. There are numerous sanctions that a Court can impose upon a lawyer such as Mr Gurdial Singh Ranjit Singh who inappropriately uses generative AI and fails to take reasonable steps to verify the accuracy of the material relied upon in submissions resulting in that lawyer misleading the Court. These sanctions include personal costs orders, admonishment and disapproval, and referral to the regulator.

76. I intend to make the personal costs orders against Mr Gurdial Singh Ranjit Singh in the form sought by the Minister.

77. I have made findings that Mr Gurdial Singh Ranjit Singh has failed to comply with the rules of this Court. He did not identify that he prepared the amended applications, affidavit and submission relied upon by Mr Dey in the judicial review proceeding. He failed to comply with his obligations under s 486I of the *Migration Act*. Due to his failure to verify authorities in the submissions that he prepared, he recklessly misled the Court. I consider that Mr Gurdial Singh Ranjit Singh breached his paramount duty to this Court. I also consider that he encouraged the maintenance of Mr Dey's judicial review proceedings up to 5 November 2025. These are serious findings and I do not intend provide Mr Gurdial Singh Ranjit Singh with a shield by anonymising his identity. It is not in the administration of justice to do so.

78. I have decided not to refer Mr Gurdial Singh Ranjit Singh to the regulator. In making this determination I have considered the approaches taken in this Court by Judge Skaros in *Valu v Minister for Immigration and Multicultural Affairs (No 2)* [2025] FedCFamC2G 95 at [38], Judge A Humphreys in *Dayal* [2024] FedCFamC2F 1166 at [19] – [22], Judge Gerrard in JNE24 at [34] – [35], Justices Aldrige, Carew and Behrens in *Mertz & Mertz (No 3)* [2025] FedCFamC1A 222 at [18] – [19] and Justice Brasch in *Tesar & Szep (No.3)* [2026] FedCFamC1F 21 (**Tesar**) at [23] and [43]. As Justice Brasch states at paragraph [23] of *Tesar*:

... [there is] an unfortunately developing body of caselaw concerning the use of AI in the preparation of documents filed with the Court, and with legal practitioners being referred to their

relevant Legal Services Commission (however so styled in each state and territory) and/or being required to personally pay costs.

79. I asked Mr Gurdial Singh Ranjit Singh to address me on why he should not be referred to the regulator. I make the observation that I have not made any findings of unsatisfactory professional conduct or professional misconduct under ss 296 or 297 of the Legal Professional Rules. Those are matters for the regulator not for me: *Tesar* at [42]. The referral by the Court of a lawyer to the regulator is an administrative action: *Sandison & Thornhill (No 3)* [2023] FedCFamCF1 981 at [174] per Henderson J; *Myron & Milson* [2020] FamCAFC 151 at [77] – [81] per Ainslie-Wallace, Ryan & Watts JJ. A referral to the regulator by the Court does not require me to anonymise the lawyer in my judgment. Any party to these proceedings or the lawyer representing the Minister can independently refer Mr Gurdial Singh Ranjit Singh whether I do so or not.

80. Mr Gurdial Singh Ranjit Singh:

- (a) acknowledges that he inappropriately used generative artificial intelligence in the preparation of documents relied upon in proceedings in this Court and considers it a serious error on his part;
- (b) accepts that he did not verify authorities and references contained in the submissions filed in this court and has identified steps to be undertaken to ensure that proper verification occurs in the future;
- (c) has apologised for his conduct not only to the Court but also to Mr Dey and the Minister;
- (d) accepts that his inappropriate use of generative AI constitutes a breach of his duty to the Court;
- (e) has undertaken professional development courses on the responsible use of artificial intelligence in legal practice; and
- (f) has attested to since undertaking the verification of documents filed and where necessary corrected or has withdrawn citations.

81. I observed Mr Gurdial Singh Ranjit Singh in the witness box. I have no reason to believe that his remorse regarding his conduct and his apology was not genuine. I also consider that it is very unlikely that Mr Gurdial Singh Ranjit Singh will repeat the conduct.

82. I consider that the public reprimand of being named in these reasons and orders in the interests of justice and within the inherent supervisory jurisdiction of the Court over lawyers: *Murray* per Justice Murphy; *Re Walker* [2025] VSC 74 per Justice Moore.

CONCLUSION

83. I will make the orders sought by the Minister including the cost order against Mr Dey in the sum of \$6,700.00 and against Mr Gurdial Singh Ranjit Singh in the sum of \$9,600.00. The Minister also sought to vacate order 5 of the orders of judicial registrar Roberts made 26 June 2025, being a costs order made during the proceedings. I will also make that order.

84. For the avoidance of doubt, the orders of 20 January 2026 ordering Mr Dey to pay the Minister's costs thrown away due to the adjournment fixed in the sum of \$1,000.00, remains in full force and effect.

I certify that the preceding eighty-four (84) numbered paragraphs are a true copy of the Reasons for Judgment of Judge Bingham.

Associate:

Dated: 14 September 2026